

Court No. - 29

Case :- WRIT - C No. - 12556 of 2019

Petitioner :- Mahaveer Singh Chauhan

Respondent :- U.P. Power Corporation Limited And 3 Others

Counsel for Petitioner :- Dinesh Kumar Misra

Counsel for Respondent :- Baleshwar Chaturvedi, Ashutosh Srivastava

Hon'ble Pankaj Mithal, J.

Hon'ble Prakash Padia, J.

Heard Sri Dinesh Kumar Misra for the petitioner and Sri Ashutosh Srivastava for the respondent No.3.

The petitioner by means of this writ petition wants a direction to be issued to the respondent-authorities not to harass him so as to realise from him dues outstanding against respondent No.4.

Respondent No.4 was earlier a tenant of the property which has been purchased by the petitioner. He failed to clear the electricity dues and now in order to realise the same from the petitioner the officials of the the respondent-authority are regularly visiting him.

Under the provisions of paragraph 4.3(f) of the Electricity Supply Code, 2005, it is joint and several responsibility of the seller and purchaser to satisfy the outstanding electricity dues up to the date of sale of the premises and the electricity department can realise the same from anyone of them. Nonetheless, the respondents have no authority to harass the petitioner. The respondent-authorities, however, may take legal action in accordance with law for recovery of the dues.

The writ petition is disposed of with the above observation.

Order Date :- 11.4.2019

Brijesh